



File No.: EXP202307615 (AI/00287/2023)

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 15, 2023, a complaint was filed with entry registration number ***REFERENCE.1 before the Spanish Agency for Data Protection against

AYUNTAMIENTO DE NOÁIN (VALLE DE ELORZ)/NOAIN (ELORTZIBAR) with NIF P3108700J (hereinafter, AYUNTAMIENTO DE NOÁIN). The reasons for the complaint are as follows:

The complainant states that on 29/05/23, at 20:30, they suffered an attempted home invasion, which resulted in a pursuit of the criminals, the recording of some videos, and their submission to the Municipal Police of the complained Ayuntamiento via the official phone number ***PHONE.1, through WhatsApp. The following day, the complainant notices that such videos, shared only with the Municipal Police, are circulating without their consent on social media (Facebook, Instagram) and groups of the instant messaging application WhatsApp. The images identify the complainant and their spouse, the entrance to their home, and also the alleged criminals, indicating the personal consequences that this disclosure is having for them.

Furthermore, they mention that on the same day they filed a complaint with the Civil Guard regarding these events. They do not provide documentation evidencing this claim.

They allege that on 02/05/23 the publication of the videos extended to media outlets, which is why they filed a complaint in the Aoiz Court and, on 03/05/23, a complaint with the Civil Guard against Diario de Noticias (EDITA ZEROA MULTIMEDIA S.A.- GRUPO NOTICIAS). They do not provide documentation evidencing these claims.

Along with the complaint, the following documentation is submitted:

- Copy of the videos mentioned in the complaint. In one of the videos, taken by the exterior security camera of the residence, only the individuals who allegedly intend to break into the home appear. The other video is recorded from a personal camera of the complainant and includes, in addition to the suspects and the vehicle used to leave the scene, images of two other individuals (presumably the complainant and their spouse).
- Screenshots from various social media and instant messaging applications where both the video captured by the external security camera of the building and the video recorded by the complainant appear, along with comments related to these, without the publication dates being determinable.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the AYUNTAMIENTO DE NOÁIN, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 08/06/2023 as evidenced by the acknowledgment of receipt in the file.

On 12/06/2023, this Agency received a written statement regarding the forwarding of the complaint sent by the Data Protection Officer of the municipality in question, stating, among other matters, that “once the files [from April 29, 2023] were received, the Municipal Police patrol of Noáin called again the Command and Coordination Center of the Navarra Police (CMC) to ensure that the WhatsApp messaging link number on the corporate phone is correct. After confirming that it is the correct number,

the files were resent for their knowledge at 20:46 hours, not being sent to any other recipient than the previous one,” indicating that the Municipal Police of Noáin acted with total correctness and strictly followed the established police procedure for such cases.

They also inform that no data leaks of a personal nature have occurred from that local entity that led to the subsequent publications of the videos provided on social networks, having sent the video files provided by the complainant solely and exclusively to the CMC of the Navarra Police.

Finally, they attach a copy of the action file of the Municipal Police of the Ayuntamiento de Noáin with all the actions carried out in this regard.

THIRD: On August 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

From the documentation submitted by the complainant, it is noted that the videos mentioned in the complaint have been published on social media and circulated through messaging applications. A video has been located published on the social network profile X “(...)” with user “****USER.1” published on ***DATE.1. In this published video, the faces have been digitally blurred.

On October 30, 2023, the publication was verified in the digital Diario de Noticias de Navarra (noticiasdenavarra.com) dated ***DATE.1, in which

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The image of a frame from the video captured by the exterior security camera appears; the faces of the individuals involved have been digitally blurred. This image does not correspond to the claimants but to those who attempted to enter the residence. Although the individuals depicted do not correspond to the claiming party, the entrance to the residence is clearly visible. Given that it is a small locality with 8,429 inhabitants, it would be possible to identify the residence of the claiming party. As of the date of this report, the publication remains active at the address: ***URL.1

According to the statements made by the Data Protection Delegate of the Noáin City Council in their written allegations regarding the transfer of the complaint, the videos provided to the Municipal Police were forwarded to the Command and Coordination Center of the Foral Police of Navarra on the same day as the events, appearing in the cited publications one day later. Therefore, since the videos were published after being transmitted to the Foral Police, there are no a priori indications regarding the origin of the published videos.

Requested from the Foral Police of Navarra information regarding (i) the processing of data sent via the WhatsApp application, individuals with access to this channel, chain of custody, and security of processing, and (ii) the causes that may have facilitated the leakage of images of the claimant and his wife with subsequent publication in digital media and social networks, on April 26, 2024, a written response was received in this Agency from the Police stating that in the report of the Civil Protection Service 112, extracted from the Emergency Management System, the incident and the actions taken regarding the attempted intrusion into the residence are reflected. In the cited incident, noted on April 29, 2023, by the Operations Chief on duty, the receipt of the video containing images of the suspects, as well as the vehicle used to leave the scene, is recorded. It is also noted that it was forwarded to the corporate phone number assigned to the Operations Chiefs of the Communication and Operational Liaison Brigade (hereinafter, BCEO) of the Foral Police, number ***REFERENCIA.2, in which it is confirmed that there is no record of it as of the date of this information's submission. Additionally, the video was sent to another corporate phone, assigned to the Service Inspectors of the Division of Prevention and Citizen Attention Pamplona, number ***REFERENCIA.3, for their knowledge and to be made available to the Judicial Police Brigade-North in anticipation of a subsequent filing of a

complaint, which was effectively filed on the same day of the events at the residence of the claimants. The following excerpt from the standardized procedure PNT 2009-088, "Emergency Attention," is transcribed:

"The method to be used, generally, for the mobilization by the BCEO of the operational patrols that are on duty is the Tetra Radio, although the telephone is established as a complementary means of communication between the BCEO and the different units. Regarding the use of the telephone, the general rule is the use of generic operational numbers assigned to units, not to individuals. The use of these generic numbers implies the obligation of their knowledge by the members of the BCEO and the obligation to be carried by the operational heads of the different units."

As it is not possible to determine how the videos mentioned in the complaint were leaked, the Noáin City Council and the Foral Police of Navarra are requested.

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Information regarding the technical and organizational measures for the security of processing implemented as indicated in Article 37 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions (hereinafter LO 7/2021) and Article 32 of the General Data Protection Regulation.

On September 13, 2024, this Agency received a letter from the City Council of Noain stating that since the use of WhatsApp messaging may not have been the most appropriate in their case, they are coordinating with the Police Forces operating in Navarra a secure method for transferring personal information. They attached the document WORK PROCEDURE NO: 001/2024 created for the processing of personal data for all personnel assigned to the Police Station of the City Council in accordance with Article 37 of LO 7/2021. This document reminds of the obligation to maintain professional secrecy regarding the management of personal data information derived from any police intervention and provides guidelines for the treatment of personal data in their possession, whether collected during a police intervention or provided by third parties for the investigation of any criminal offense.

On September 23, 2024, this Agency received a letter from the Foral Police of Navarra stating that by Foral Order 210/2007, of July 4, the Security Standards in Information Systems and Communications in the Administration of the Foral Community of Navarra and its public bodies are established, accessible at the internet address <http://www.lexnavarra.navarra.es/detalle.asp?r=29467>. They added that through Foral Decree 20/2019, of March 6, which approves the data protection and information security policy of the administration of the Foral Community of Navarra and its public bodies, the reference framework was defined that allows the management of data protection and information security in the context of personal data processing activities and information systems. This decree is accessible at the address <https://www.lexnavarra.navarra.es/detalle.asp?r=51367#Ar.7>.

Additionally, they detail the Guide for the use and good practices of mobile phones, the technical and organizational measures implemented in the Foral Police of Navarra to ensure the security of processing, and the training actions provided for this purpose.

The Foral Police of Navarra is required to send the conclusions of the investigative action initiated within the Division of Prevention and Citizen Attention of Pamplona as a result of the claimed events mentioned in the previous letter, and this Police indicates in the same letter dated September 23, 2024, "that the attempted robbery was recorded, in addition to by the homeowners, by the security cameras of the house. The video recorded by the security camera of the portal was never provided to the Foral Police of Navarra. The images that went viral and were shared massively were composed of both videos together, the one recorded by the homeowners and the one recorded by the security cameras," and they add as a conclusion that "it cannot be evidenced that the leak of images occurred from the Foral Police. In any case, these events have served to analyze and improve the Instruction of the C/ Jorge Juan, 6

Headquarters of the Foral Police, No. IJ.004.JEF.24 “Use of mobile devices for the processing of personal or sensitive data.”

In view of the statements of the parties and the documentation in this file, it has not been possible to determine whether the dissemination of the videos mentioned in the complaint originated from a leak from the City Council of Noáin (the accused party), the Foral Police of Navarra, or from another source. Regarding the technical and organizational measures for the security of processing implemented as indicated in Article 37 of LO 7/2021, and Article 32 of the GDPR, both bodies have provided this Agency with information about specific mandatory instructions, reinforced with training actions, for the correct processing of personal data.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Articles 49 and 50 of LO 7/2021 and as provided in Articles 47 and 48.1 of LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Finally, Article 52 “Applicable regime to procedures processed before data protection authorities” of LO 7/2021 establishes that:

“1. In the event that the interested parties consider that the processing of personal data has infringed the provisions of this Organic Law or that their request to exercise the rights recognized in Articles 21, 22, and 23 has not been addressed, they shall have the right to file a complaint with the data protection authority.

2. Such complaints shall be processed by the competent data protection authority in accordance with the procedure established in Title VIII of Organic Law 3/2018, of December 5, and, where applicable, by the legislation of the Autonomous Communities that is applicable. The general rules on administrative procedures and the legal regime of the public sector shall have a subsidiary character.”

II

Article 37 of LO 7/2021, under the heading “Security of processing,” establishes that:

“1. The data controller and the processor, taking into account the state of the technology and the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the levels of risk to the rights and freedoms of individuals, shall apply appropriate technical and organizational measures to ensure an adequate level of security, especially regarding the processing of the categories of personal data referred to in Article 13. In particular, they shall apply to the processing of personal data the measures included in the National Security Scheme.

2. Regarding automated processing, the data controller or processor, following a risk assessment, shall implement control measures for the following purposes:

- a) In access control to equipment, deny access to unauthorized persons to the equipment used for processing.
- b) In control of data media, prevent them from being read, copied, modified, or deleted by unauthorized persons.
- c) In storage control, prevent unauthorized personal data from being introduced, or that such data can be inspected, modified, or deleted without authorization.
- d) In user control, prevent automated processing systems from being used by unauthorized persons through data transmission facilities.
- e) In access control to data, ensure that authorized persons to use an automated processing system can only access the personal data for which they have been authorized.

- f) In transmission control, ensure that it is possible to verify and establish to which bodies personal data have been transmitted or may be transmitted, or to whose disposal personal data may be placed through data communication equipment.
- g) In input control, ensure that it can be verified and confirmed, retrospectively, which personal data have been entered into automated processing systems, at what time, and who entered them.
- h) In transport control, prevent personal data from being read, copied, modified, or deleted without authorization during the transfer of personal data or during the transport of data media.
- i) In recovery control, ensure that installed systems can be restored in the event of interruption.
- j) In reliability and integrity control, ensure that the system functions do not present defects, that operational errors are indicated, and that the stored personal data are not degraded due to system malfunctions.”

III

Article 6.1.f) of LO 7/2021 provides as follows:

“1. Personal data shall be:

[...]

- f) Processed in such a way as to ensure adequate security, including protection against unauthorized or unlawful processing and against accidental loss, destruction...”

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o accidental damage. For this purpose, appropriate technical or organizational measures will be used.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may undertake, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute to the Town Hall of Noáin (the complained party), the Foral Police of Navarra, or any other source the responsibility for the unauthorized dissemination of the images and videos mentioned in the complaint on social networks (Facebook, Instagram) and groups of the instant messaging application WhatsApp, in accordance with what has been stated, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the TOWN HALL OF NOÁIN (VALLE DE ELORZ)/NOAIN (ELORTZIBAR), the FORAL POLICE OF NAVARRA, and the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the

vacancy of the Presidency and Deputy Presidency
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